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22-CIV-02095 JASMINE AMOS VS. UNITEDHEALTH GROUP INCORPORATED, ET AL.

LINE 1

JASMINE AMOS
UNITEDHEALTH GROUP INCORPORATED

REUBEN D. NATHAN
ANDREW M. PALEY

PLAINTIFF: JASMINE AMOS'S MOTION TO COMPEL UNITEDHEALTH GROUP INCORPORATED'S FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE AND FOR MONETARY SANCTIONS

TENTATIVE RULING:

Plaintiff Jasmine Amos's ("Plaintiff") Motion to Compel UnitedHealth Group Incorporated's ("Defendant" or "UHG") Further Responses to Request for Production of Documents, Set One and for Monetary Sanctions is GRANTED, in large part, and DENIED, in part as described below. The Court issues a discovery sanction in the amount of \$5030 to be paid within 30 days of service of the formal Order.

This is a wage and hour representative action alleging that Defendants UnitedHealth Group Incorporated and United Healthcare Services, Inc. violated California labor laws by failing to reimburse work-from-home expenses. (First Amended Complaint, filed April 9, 2025, ¶¶ 1-3.)

Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.

(CCP § 2017.010.)

(a) On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply:

- (1) A statement of compliance with the demand is incomplete.
- (2) A representation of inability to comply is inadequate, incomplete, or evasive.
- (3) An objection in the response is without merit or too general.

(b) A motion under subdivision (a) shall comply with each of the following:

- (1) The motion shall set forth specific facts showing good cause justifying the discovery sought by the demand.
 - (2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040.
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(3) In lieu of a separate statement required under the California Rules of Court, the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute.

(c) Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand.

[. . .]

(h) Except as provided in subdivision (j), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

(CCP § 2031.310.)

“The ruling [on a motion to compel] usually is based on consideration of the following factors: [¶] The relationship of the information sought to the issues framed in the pleadings; [¶] The likelihood that disclosure will be of practical benefit to the party seeking discovery; [¶] The burden or expense likely to be encountered by the responding party in furnishing the information sought. [*Columbia Broadcasting System, Inc. v. Sup.Ct. (Rolfe)* (1968) 263 CA2d 12, 19, 69 CR 348, 352]” (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (Rutter, June 2026 Update), ¶ 8:1181.)

The Court has broad discretion and authority to manage discovery. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 540.)

Defendant argues that the motion is moot because it served verified supplemental responses. It is not because the supplemental responses did not resolve the issues raised by the motion. *County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243, 255–256:

Plaintiff seeks further responses from Defendant to her Request for Production, Set One, Nos. 1-35.

The parties raise overarching issues regarding relevance, privilege, and overbreadth and burden, which the Court addresses before addressing its individual rulings as to each request.

Defendant’s main objection is that it did not employ Plaintiff, nor did it have any employees in California during the relevant time period, therefore it is an improper party to the case and no responsive documents have ever existed. Defendant also argues that Plaintiff’s personal records are not relevant because Plaintiff has resolved her individual claims in arbitration, and that Plaintiff has already received all the documents she now seeks from Defendant from UHS.

A motion to compel production of documents must “set forth specific facts showing good cause justifying the discovery sought by the demand.” (CCP § 2031.310(b)(1).)

Plaintiff provides documents which, at a minimum, place at issue the question whether Defendant was her employer. Plaintiff provides a copy of a “New Employee Orientation Training” which asks for Plaintiff’s consent to terms such as “I understand I am required to attend the UnitedHealth Group New

Employee Orientation because it contains important information regarding the general employment policies of UnitedHealth Group and its affiliated companies and subsidiaries (the Company) and my obligations as an employee.” (Glugoski Dec., Ex. 4, p. 1.) Plaintiff also provides a document she was required to sign which has a section titled “UnitedHealth Group Code of Conduct” which states in part, “I will carry out my responsibilities for UnitedHealth Group in accordance with the applicable law and the Company's [defined as “UnitedHealth Group”] contracts and policies.” (Id. at Ex. 5, p. 1.) It also states, “During my employment with UnitedHealth Group and for the one-year period following termination of my employment, agree that I will not, directly or indirectly, hire or employ any employee of UnitedHealth Group . . .” (Id. at Ex. 5, p. 3.)

Plaintiff also provides a document titled “Time Reporting Overview” which begins with a subsection titled “Overview” which states: “UnitedHealth Group pays its employees for all time worked on a bi-weekly payroll cycle. It is the responsibility of each non-exempt employee to accurately record all time worked on a daily basis in Global Self Service (GSS).” (Id. at Ex. 6, p. 1.) The document goes on to describe time-keeping policies, referring to the recipient of the document as a “UnitedHealth Group employee.” (Id. at Ex. 6, p. 2.) Plaintiff also provides a document titled “Employee Guidelines for Attendance – California Employees” which purports to describe “UnitedHealth Group’s Attendance Policy.” (Id. at Ex. 8, p. 1.) Lastly, Plaintiff attaches a “Corrective Action Form” with “UnitedHealth Group” written in bold at the top and which lists Plaintiff’s “Performance Problem” and states that the matter has been closed based on “Performance Corrected.” (Id. at Ex. 9, p. 1.)

Defendant does not acknowledge or respond to any of this evidence in its opposition. The only reference Defendant makes to its role besides denial of employer status is in its October 21, 2025 letter to the Court ahead of the October 24, 2025 IDC in which it states that “UHG is simply the parent company of UHS and provides certain shared services – such as payroll processing - to its subsidiary.” (MacGregor Dec., Ex. G, p. 3.)

Plaintiff has met her burden to demonstrate that requests seeking employment-related documents from Defendant are relevant. The next questions are whether Plaintiff’s personal records are relevant and whether the fact that they have already been produced in discovery requested from UHS renders the requests duplicative.

Plaintiff has adequately provided an explanation for why her own records are potentially relevant to company-wide procedures. This contention is logical as a matter of common sense and practice, because plaintiffs in wage and hour class actions regularly extrapolate from their own records to determine whether Labor Code violations may have been committed against other employees.

As for Defendant’s argument that the requests are duplicative, Defendant relies on CCP § 2031.060, subsection (b), which states: “The court, for good cause shown, may make any order that justice requires to protect any party or other person from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.”

Defendant has failed to demonstrate that the documents are duplicative because it has not provided evidence or even a statement that any documents it would produce would be the same exact documents produced by UHS. Plaintiff’s evidence contradicts this as well, because Plaintiff has shown evidence of documents that appear to have been written and used by UHG. Therefore, the Court cannot conclude on this record that Defendant lacks access to different documents than UHS.

Plaintiff argues that while Defendant objects to many requests on the grounds of attorney-client privilege, work-product privilege, and/or other legal privilege and privacy doctrines, Defendant has failed to produce a privilege log, explain which privacy rights are implicated, or sought a protective order.

CCP § 2031.240(c)(1) states: “If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log.”

Defendant has failed to meet this standard for any of its objections on the grounds of attorney-client privilege, work-product privilege, privacy, or third-party privacy. In its responses to discovery, Defendant provides nothing beyond an assertion of the privilege. In its opposition to the instant motion, Defendant largely refers to privileges or privacy issues in the hypothetical, i.e., the request “could” implicate privacy rights. The Civil Discovery Act does not authorize a party to refuse to respond to discovery based on a potential that the request could uncover privilege or private information.

Turning specifically to Defendant’s assertions of third-party privacy rights, to the extent Defendant argues the rights of other aggrieved employees are implicated, Plaintiff correctly argues that this information is discoverable in a PAGA action, and any asserted interests can be protected through a protective order. (See *Williams v. Superior Court* (2017) 3 Cal.5th 531, 553-557.) If Defendant asserts that other third parties’ rights are implicated, Defendant must make a record, so that Plaintiff can assess the merits of the objection and proceed accordingly. *Doe 2 v. Superior Court* (2005) 132 Cal.App.4th 1504, 1520:

Defendant objects to the definitions of several of the terms in Plaintiff’s RPD, Set One, arguing that they are overbroad in time or scope.

Plaintiff’s RPD defines “AGGRIEVED EMPLOYEES” as “any person whose [sic] was and/or is employed by Defendant in the State of California between March 18, 2021 and the present as an AT HOME EMPLOYEES working from home within the geographic boundary of the State of California.” (MacGregor Dec., Ex. B [“Plaintiff’s Request for Production of Documents Set One to UHG], p. 3.) “AT HOME EMPLOYEES” are defined as “all current and former employees, geographically residing in the State of California at any time during their employment with you, who were expected to work from their home located within the geographic boundary of the State of California at any time from March 18, 2021 to the present.” (Id.)

The Court finds that the above definitions are overbroad as to scope, but not as to time. The definitions above fail to limit themselves to non-exempt employees, which is the group of employees on whose behalf Plaintiff brings her action. Plaintiff has failed to provide in her reply any reason why the definition should not be restricted, therefore the Court orders the definitions modified to add the qualifier, “non-exempt employees.” As for Defendant’s argument that the time period goes beyond the relevant statute of limitations, the Court finds that this is not a valid objection as to the above definitions or as to any of the individual RPDs. The Court finds that there may be relevant information going back further than PAGA’s one-year statute of limitations, e.g., policies and practices established before Plaintiff started working for Defendant, or documents dated after Plaintiff started working for Defendant (in 2018) but prior to one year before Plaintiff gave PAGA notice.

Defendant also objects to Plaintiff’s definitions of “YOU,” “YOUR,” and “ANYONE ACTING ON YOUR BEHALF,” which are defined in the RPD as “you, your officers, your directors, your managing agents, your parent corporation, your predecessor corporation(s), your subsidiaries, your agents, your

attorneys, their agents, their employees, your investigators and anyone else acting or whose has [sic] acted on your behalf.” (Pl.’s RPD to UHG, p. 2.)

CCP § 2031.010 allows a party to “demand that any other party produce and permit the party making the demand, or someone acting on the demanding party's behalf, to inspect and to copy a document that is in the possession, custody, or control of the party on whom the demand is made.” (CCP § 2031.010(b).) It is therefore appropriate for Plaintiff to define these terms as broadly as she has.

Defendant also objects to Plaintiff’s definition of “DOCUMENT,” defined in the RPD as follows:

any written, printed, typed, or other graphic matter of any kind or nature, however produced or reproduced, whether or not sent or received, private or confidential, wherever located, including drafts and copies bearing notations or marks not found on the original, and includes, but is not limited to, all memoranda, reports, financial reports, notes, transcripts, letters, envelopes, telegrams, cables, telex messages, messages (including reports, notes, notations and memoranda of or relating to telephone conversations, telegrams, messages, conversations and any oral communications), tabulations, studies analyses, evaluations, projections, work papers, statements, summaries, opinions, journals, statistical records, desk calendars, appointment books, diaries, lists, comparisons, questionnaires, surveys, charts, graphs, books, articles, magazines, newspapers, booklets, circulars, bulletins, notices, instructions, manuals, minutes or transcriptions of meetings, written communications of any type, electronic mail messages (E-mail), photographs, microfilm, punch cards, magnetic tape, discs, data cells, drums, printouts, and other data compilations from which information can be obtained, (translated, if necessary, by Defendant(s) into the English language or through detection devices in usable form).

(Pl.’s RPD to UHG, p. 2.) The Court finds that this definition is overbroad and unduly burdensome in the particular context of this case. (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 219.)

Here, although some of the categories enumerated by Plaintiff relate to the typical records that an employer would have, some seem random, redundant, ambiguous, or unreasonable. The Court therefore orders that the definition be modified as follows:

any written, printed, typed, or other graphic matter of any kind or nature, however produced or reproduced, whether or not sent or received, private or confidential, wherever located, including drafts and copies bearing notations or marks not found on the original, and includes, but is not limited to, all memoranda, reports, financial reports, notes, transcripts, letters, ~~envelopes, telegrams, cables, telex messages,~~ messages (including reports, notes, notations and memoranda of or relating to telephone conversations, ~~telegrams, messages, conversations and any oral communications,~~ tabulations, studies analyses, evaluations, projections, work papers, statements, summaries, opinions, journals, statistical records, ~~desk calendars, appointment books, diaries,~~ lists, ~~comparisons,~~ questionnaires, surveys, charts, graphs, books, articles, ~~magazines, newspapers, booklets, circulars,~~ bulletins, notices, instructions, manuals, minutes or transcriptions of meetings, written communications of any type, electronic mail messages (E-mail), photographs, ~~microfilm, punch cards, magnetic tape, discs, data cells, drums,~~ printouts, and other data compilations from which information can be obtained, (translated, if necessary, by Defendant(s) into the English language or through detection devices in usable form).

The above editing strikes out documents which, according to a commonsense understanding, do not seem calculated to lead to relevant discoverable information regarding Defendant's work from home policies.

Individual RPDs

Subject to the modifications of definitions described above, the Court GRANTS the motion as to RPD Nos. 1, 2, 3, 8, 10, 11, 12, 18, 19, 20, 21, 22, 23, 24, 25, 26, 28, 29, 31, 32, 35. Defendant raises objections to terms in most of these RPDs besides those terms discussed above, all of which the Court finds have common sense meanings and do not require further definition. Defendant specifically objects to RPD No. 22 on the grounds that it calls for electronically stored information not reasonably accessible, but Defendant fails to support that objection with any evidence or reasoning or explain why this request presents an ESI challenge.

Defendant argues as to RPD Nos. 4, 7, and 9 that the term "losses" is vague and ambiguous, and the Court agrees. The Court orders that the term be stricken from the requests and that Defendant respond to the requests as modified.

Defendant argues as to RPD Nos. 16 and 17 that they improperly extend to employees beyond the aggrieved employees which are the subject of this action, and the Court agrees. The Court orders the requests modified to reach only Plaintiff and the aggrieved employees as defined in this action, and orders Defendant to respond to the requests as modified.

The Court DENIES the motion as to RPD Nos. 5, 6, 27, 30, and 34 on the grounds that the requests are facially overbroad. The Court DENIES the motion as to RPD Nos. 13, 14, 15, and 33 on the grounds that the requests are not reasonably calculated to lead to the discovery of admissible evidence.

Sanctions

Except as provided in subdivision (j), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

(CCP § 2031.310(h).)

Each party requests sanctions against the other party.

Obviously, in light of the tentative ruling there is no basis for sanctions against the Plaintiff.

As far as the Defendant, the Court might have been inclined to deny sanctions, in the abstract, because clearly some of Defendant's objections to the discovery were justified. And if Defendant had only made its more targeted objections, the Court would find its actions justified.

However, it is the Court's view that Defendant's overarching position that it did not have to produce documents because it is not Plaintiff's employer was not justified and was the driving force necessitating the filing of this motion. While ultimately Defendant may establish that it is not Plaintiff's employer and/or is not a proper defendant, it is/was a defendant when this discovery was sought and, in the Court's view, it cannot be reasonably disputed that many of the records sought here are discoverable if Defendant has them. Ultimately, the Defendant may not have any responsive documents. But if that is the case, then it should have conducted a reasonable search and responded as such in the first instance rather than

requiring extended costly and time-consuming litigation. The idea that it would not have to respond substantively to discovery because “it is not the employer” is not in any way justified. For that reason, the Court does award sanctions. Plaintiff seeks 7.1 hours of time at \$970 per hour. The 7.1 hours is very reasonable for this motion. And ultimately, Plaintiff may establish that \$970 is a reasonable rate for the attorney who drafted this motion. However, in light of the nature of the motion (a relatively straightforward, albeit involved discovery motion), staffing a billing rate \$970 is not supportable when it could have (at least in theory) been drafted by a less experienced and accomplished attorney. Accordingly, the Court calculates the Sanction using a billing rate of \$700 and awards a sanction of \$5030, which includes the \$60 filing fee and constitutes a very reasonable reimbursement for this motion, which did require a substantial amount of work.

Finally, the Court notes that it has four additional discovery motions on its very impacted complex docket calendared for this case. As Judge Silberman is new to this case, if either party believes that a further IDC as to any of the remaining motions would be helpful, it strongly encourages the parties to reach out to Department 11 to schedule one. In addition, to the extent that the Court’s analysis in this tentative merits UHG revisiting its position as to the December 21, 2026 Motion to Compel a deposition or the March 1, 2027 Motion to Compel further responses to interrogatories, the Court strongly encourages the parties to meet and confer further and reach resolution and the Plaintiff withdrawing the motion(s). The Court is not prejudging those pending motions and will address them on their merits when fully briefed, if necessary. But, if having the benefit of the Court’s view, view Defendant changes its position and further supplements the discovery in a reasonable manner and submits to a deposition, the Court would not be inclined to issue further sanctions.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the Plaintiff shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.
